



CHAPTER xxx.

An Act to provide that certain private enclosures in the borough of Hove shall become public pleasure grounds to confer further powers upon the mayor aldermen and burgesses of that borough to make further and better provision for the health local government and improvement of the borough and for other purposes.
[31st July 1947.]

W HEREAS by " An Act for paving lighting watching cleansing and otherwise improving Brunswick Square and Brunswick Terrace and certain streets and other public places upon certain grounds late part of a farm called ' the Wick Farm ' in the parish of Hove in the county of Sussex " by the Brunswick Square Improvement Extension Act 1851 by the Hove Improvement Act 1858 and the surrender and admittance made in pursuance thereof and by the Hove Commissioners Act 1873 the enclosures as defined in this Act were vested in the Hove Commissioners whose rights powers duties and property are now exerciseable by and attached to and vested in the mayor aldermen and burgesses of the borough of Hove (in this Act called " the Corporation ") and under those Acts the inhabitants of certain premises in the neighbourhood of the enclosures are entitled to the use and enjoyment thereof and the occupiers of those premises are liable for the payment of private improvement rates for defraying the expenses of and incidental to the maintenance improvement and management thereof:

And whereas it is expedient that the enclosures should be kept open as pleasure grounds for the use and enjoyment of

the public and should be maintained by the Corporation and that further provision should be made in regard thereto as by this Act provided:

And whereas it is expedient to make further provision in reference to the esplanades and lands situate between Kingsway and high-water mark of ordinary tides:

And whereas it is expedient to make further and better provision for the health local government and improvement of the borough and to enlarge the powers of the Corporation in regard thereto:

And whereas it is expedient to make further provision in regard to the finances of the Corporation and the recovery of rates:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

23 & 24
Geo. 5. c. 51.

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

And whereas plans of the enclosures were duly deposited with the clerk of the county council and are in this Act referred to as the deposited plans:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

Short and
collective
titles.

1.—(1) This Act may be cited as the Hove Corporation Act 1947.

(2) The local Acts as hereinafter defined and this Act may be cited jointly as the Hove Corporation Acts and Orders 1830 to 1947.

Division
into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Public walks and pleasure grounds.

Part III.—Streets and buildings.

Part IV.—Sanitary provisions.

Part V.—Finance and rating.

Part VI.—Miscellaneous.

Part VII.—General.

3.—(1) In this Act the several words and expressions to which meanings are assigned by sections 90 and 343 of the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless otherwise expressly enacted or unless the subject or context otherwise requires—

- (i) "The borough" means the borough of Hove;
- (ii) "The Corporation" means the mayor aldermen and burgesses of the borough of Hove;
- (iii) "The council" means the council of the borough;
- (iv) "The county council" means the county council of the administrative county of East Sussex;
- (v) "The town clerk" "the surveyor" "the medical officer" and "the sanitary inspector" mean respectively the town clerk the surveyor the medical officer of health and any sanitary inspector of the borough;
- (vi) "The general rate fund" and "the general rate" mean respectively the general rate fund and the general rate of the borough;
- (vii) "Statutory borrowing power" includes a power of borrowing money conferred on the Corporation by or under any enactment except paragraph (a) of subsection (1) of section 215 of the Act of 1933;
- (viii) "Statutory security" means any security in which trustees are for the time being authorised by law to invest trust moneys and any mortgage bond debenture debenture stock stock or other security created by a local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation; 38 & 39 Vict.
c. 83.
- (ix) "Security of the Corporation" means any mortgage bond stock or other security granted or issued by the Corporation;
- (x) "Daily penalty" means a penalty for each day on which an offence is continued after conviction therefor;
- (xi) "Contravention" includes failure to comply and "contravene" shall be construed accordingly;
- (xii) "The enclosures" means the lands shown on the deposited plans namely the pleasure grounds in the centres of Brunswick Square Adelaide Crescent and Palmeira Square and the pleasure ground opposite to Medina Villas known as "the Lawn";

PART I.
—cont.1 & 2 Geo. 6.
c. 56.9 & 10 Geo. 5.
c. 57.38 & 39 Vict.
c. 55.40 & 41 Vict.
c. clxviii.2 & 3 Geo. 5.
c. lx.3 & 4 Geo. 5.
c. liii.

(xiii) "The esplanade" means the whole of the lands in the borough (including the Hove sea wall King's Esplanade the Western Esplanade the Lagoon tennis courts bowling greens lawns and bandstands) which are situate between Kingsway and high-water mark of ordinary tides and which for the time being are vested in or occupied by the Corporation and are used as public walks pleasure grounds or recreation grounds or as a highway;

(xiv) "Food" has the meaning assigned to it by the Food and Drugs Act 1938;

(xv) "The Minister" means the Minister of Health;

(xvi) "The Lands Clauses Acts" means the Lands Clauses Acts as amended by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act;

(xvii) "The Public Health Acts" means the Public Health Act 1875 and any Acts amending or extending that Act;

(xviii) "The Act of 1933" means the Local Government Act 1933;

(xix) "The local Acts" means the Acts and parts of Acts mentioned in Part I of the schedule to this Act the Orders mentioned in Part II of that schedule and so much of the Acts confirming those Orders as relates thereto;

(xx) "The Act of 1858" "the Act of 1873" "the Act of 1877" "the Act of 1912" and "the Act of 1913" mean respectively the Hove Improvement Act 1858 the Hove Commissioners Act 1873 the Hove Commissioners Act 1877 the Hove Corporation Act 1912 and the Hove Corporation Act 1913;

(xxi) "Enactment" includes this Act and any general or local Act Order byelaw or regulation for the time being in force within the borough.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II.

PUBLIC WALKS AND PLEASURE GROUNDS.

Enclosures
to be
public
pleasure
grounds.

4.—(1) The rights conferred by enactments contained in the local Acts or by enactments repealed by this Act for the use and enjoyment of the enclosures by the inhabitants of the premises referred to in those enactments are hereby extinguished and the provisions of those enactments whereby

those rights are conferred are hereby repealed and notwithstanding anything contained in the local Acts the enclosures shall be public pleasure grounds within the meaning of the Public Health Acts and the Corporation may exercise in regard thereto the powers conferred upon them by any enactment in relation to public pleasure grounds and the expenses in connection therewith shall be discharged out of the general rate fund.

(2) The following enactments are hereby repealed (namely):—

(a) Section XXXIX (A piece of land known as “ the Lawn ” vested in Improvement Commissioners) of the Act of 1858;

(b) Part V (Private enclosures) of the Act of 1873.

(3) Proviso 2 of the Borough of Hove Scheme 1898 under which the councillors returned by certain wards form the enclosure committees for such wards is hereby rescinded.

(4) Notwithstanding the repeal effected by this section—

(a) The enclosures and all property vested in the Corporation at the passing of this Act shall continue vested in them;

(b) All actions arbitrations prosecutions and proceedings by with or against the Corporation by reason of any matter or thing accruing or done before the passing of this Act under or in execution of or in relation to the provisions of the repealed enactments may be continued commenced taken made or prosecuted by or against the Corporation as if this Act had not been passed;

(c) All byelaws rules regulations orders and licences made or granted under the repealed enactments which at the passing of this Act were existing and valid shall until altered or revoked or until their expiration continue in force;

(d) All rates charges and other sums at the passing of this Act due or accruing due to the Corporation may be recovered as if this Act had not been passed.

(5) The mention of particular matters in subsection (4) of this section shall not be held to prejudice or affect the general application of section 38 (Effect of repeal in future Acts) of the Interpretation Act 1889.

5.—(1) Any balances of the private improvement rates levied by the Corporation in pursuance of the powers conferred upon them by the Act of 1873 shall be carried to the general rate fund and any moneys which have been paid or

52 & 53 Vict.
c. 63.

Application
of private
improvement
rates.

PART II.

—cont.

2 & 3 Geo. 6.
c. 75.

may be paid to the Corporation in respect of the enclosures whether as compensation for the removal of railings by the Ministry of Works or as compensation under the Compensation (Defence) Act 1939 or any statute rule or order amending the same or otherwise shall be carried to that fund.

(2) Any deficit or overdraft existing at the passing of this Act in the accounts kept by the Corporation in relation to any private improvement rates which were levied by them under the provisions of the Act of 1873 shall be discharged out of the general rate fund.

Persons
interested in
enclosures
not under
liability for
extinguish-
ment of
rights.

Power to
prohibit or
restrict
use of
esplanade.

6. It is hereby declared that no person having an estate or interest in the premises the inhabitants of which had any rights for the use and enjoyment of any of the enclosures which are extinguished by this Act shall be under any liability to any person in respect of the extinguishment of those rights.

7.—(1) The Corporation may by order prohibit or restrict the use of the esplanade or any part thereof by persons or by vehicles at any time when they consider such prohibition or restriction to be necessary in consequence of works of repair or reconstruction or for the prevention of danger.

(2) Before an order made under this section shall come into operation the Corporation shall publish notice thereof in one or more newspapers circulating in the borough and so long as any such order is in operation the Corporation shall keep posted a notice thereof in a conspicuous manner on the esplanade.

(3) An order made under this section prohibiting or restricting the use of any part of the esplanade which consists of a highway shall make such provision as may be necessary for affording access to or from premises abutting on the highway.

(4) Any person who contravenes an order made under this section shall be liable to a penalty not exceeding five pounds.

PART III.

STREETS AND BUILDINGS.

No building
allowed
until street
defined.

8.—(1) Where plans and sections of a new street have been deposited with and approved by the Corporation no person except with their consent shall in any such street commence to erect any new building or to excavate for the foundation thereof until he has defined by posts or in some other suitable manner the approved line width and level of so much of the street as abuts upon or adjoins the land on which the building is to be erected or any land which will be occupied in connection with that building and it shall not be lawful for any

person except with such consent to erect the building or any fence nearer to the centre of the street than the posts or other marks by which the width of the street has been defined.

PART III.
—cont.

(2) Any person who contravenes this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding two pounds.

9.—(1) Any person who lays out or intends to lay out a new street or part of a new street shall before any building is begun to be erected abutting on such new street or part of a new street if required by the Corporation so to do construct the carriageway of such new street or such part of the new street as may be required by the Corporation in accordance with the byelaws for the time being in force with respect to new streets and shall also if required sewer such street or such part of such street:

No buildings
to be
erected
until street
formed.

Provided that where any new street is or is intended to be constructed of a length exceeding one hundred yards the Corporation shall not be empowered to require such new street to be constructed in its entire length by one operation but such new street may be constructed in parts and in such event nothing in this section shall prevent the erection of a new building abutting on any part of such street in reference to which the foregoing provisions of this section have been complied with.

(2) The execution of any works under the provisions of this section shall not relieve any person of any liability under the Private Street Works Act 1892 or under any local Act for the time being in force within the borough.

55 & 56 Vict.
c. 57.

(3) Any person who contravenes this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

10.—(1) The Corporation may at any time after prescribing the improvement line of any street in pursuance of the power conferred upon them by section 33 of the Public Health Act 1925 on giving six months' previous notice in writing to the owner require that any building or erection which or any part of which was beyond or in front of any such improvement line at the date when the same was so prescribed shall be pulled down set back or altered so that the same shall not project beyond or in front of such improvement line.

Further
powers as
to future
line of
street.
15 & 16
Geo. 5. c. 71.

(2) The owner may and if so required by the Corporation shall notwithstanding any contract lease or agreement or any provision therein contained enter upon any land building or erection affected by any requirement of the Corporation under this section and carry out such requirement.

PART III.
—cont.

(3) In the event of any building or erection being pulled down set back or altered in accordance with any requirement of the Corporation under this section the Corporation shall make compensation to any owner lessee or tenant of any such building or erection for any loss or damage sustained by him in consequence of such requirement being complied with.

(4) The amount of any compensation payable under this section and any other question under this section the determination whereof is not otherwise provided for by this Act shall in default of agreement be determined in accordance with the provisions of the Lands Clauses Acts but in estimating the amount of any such compensation the benefit arising from the widening or improvement of the street and accruing to the property in respect of which such compensation shall be payable shall be fairly estimated and set off against such compensation.

(5) Any person who shall fail to comply with a requirement of the Corporation under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds.

Planting of
trees in
streets.

11. The Corporation when carrying out in any street or in any part thereof any works under the Private Street Works Act 1892 or under section 8 (Further powers for paving and lighting streets) of the Act of 1877 may with the consent in writing of a majority in number and rateable value of the owners of houses and land in such street or such part thereof cause trees or shrubs to be planted and grass margins to be laid out in such street or such part thereof and erect guards or fences and otherwise do everything expedient for the protection of such trees shrubs and grass margins and any expense incurred by the Corporation under this section shall be deemed part of the expenses of carrying out the said works:

Provided that—

(1) No such tree shrub grass margin guard or fence shall be placed or laid out in such a situation as to hinder the reasonable use of the highway by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises adjacent to the said street;

41 & 42 Vict.
c. 76.

(2) For the purposes of section 7 of the Telegraph Act 1878 any work done in exercise of the powers conferred by this section shall be deemed to be work done in the execution of an undertaking authorised by Act of Parliament and the Corporation shall be deemed to be the undertakers.

12.—(1) If—

- (a) any owner of land fronting adjoining or abutting on a street within the meaning of the Private Street Works Act 1892 and situate in the borough conveys sells leases or otherwise disposes of the part or any portion of the part of that land which fronts adjoins or abuts on that street; and
- (b) any expenses of works executed by the Corporation under the Private Street Works Act 1892 in or in relation to that street are apportioned on such part or portion of that land; and
- (c) the Corporation are unable to recover such expenses in whole or in part from the person to whom such part or portion of that land was conveyed sold leased or disposed of or by the sale of such part or portion of that land; and
- (d) a court of summary jurisdiction is satisfied that such conveyance sale lease or disposal was intended for the purpose of evading the payment of any expenses under the Private Street Works Act 1892—

PART III.

—cont.

As to
evasion by
owners of
private
street works
expenses.

then such expenses or so much thereof as has not been recovered by the Corporation may to such extent as the court may determine be recovered from that owner in the same manner as expenses of the execution of works under the Private Street Works Act 1892 may be recovered as though he had not made such conveyance sale lease or disposal and as though the said amount of the said expenses had been apportioned on the land of that owner which before such conveyance sale lease or disposal was made fronted adjoined or abutted on such street.

(2) The foregoing provisions of this section shall with any necessary modifications apply so as to enable the Corporation to recover the estimated expenses and the actual expenses of work under section 8 (Further powers for paving and lighting streets) of the Act of 1877 from the owner within the meaning of that section of any house or land which forms part of a new street within the meaning thereof who conveys sells leases or otherwise disposes of the part or any portion of the part of the house or land which fronts on that new street.

13.—(1) Within one month after the date of the first publication under section 6 of the Private Street Works Act 1892 of the resolution of the Corporation approving the specifications plans estimates and provisional apportionments of private street works the owner of any premises shown as liable to be charged in the provisional apportionment may

Crossings in
connection
with
private
street
works.

PART III.
—cont.

give notice to the Corporation that he desires a crossing for vehicles to be made over a footpath comprised in the works upon which his premises abut and in that case shall indicate the place where he desires the crossing to be made.

(2) If the Corporation approve the making of a crossing in a place selected by the owner or agreed between him and the Corporation the Corporation when carrying out the private street works shall make such crossing.

(3) The expenses of private street works shall be deemed to be the expenses which would have been incurred if the crossing had not been made and the final apportionment of such expenses shall be made and the expenses may be recovered as if no crossing had been made and any additional expense incurred by the making of the crossing shall be paid by the owner of the premises for which it is provided and for the recovery thereof and of interest thereon the Corporation shall have the same powers as they have for the recovery of sums and interest thereon under the said Act of 1892 including the powers of section 13 (Charge on premises) of that Act.

(4) When the Corporation execute any works of paving metalling flagging channelling or making good a street or part of a street under section 8 (Further powers for paving and lighting streets) of the Act of 1877 the owner of any premises abutting upon that street or part of a street may give to the Corporation a notice similar to the notice which may be given under subsection (1) of this section and in that case—

- (a) subsection (2) of this section shall apply; and
- (b) for the purposes of the said section 8 the amount of the actual expenses therein referred to shall be deemed to be the expenses which would have been incurred if the crossing had not been made and any additional expenses incurred by the making of the crossing shall be paid by the owner of the premises for which the crossing is provided and for the recovery thereof and interest thereon the Corporation shall have the same powers as they have for the recovery of expenses under the said section 8 including their powers under section 257 (Recovery of expenses by local authority from owners) of the Public Health Act 1875.

Crossings
over
footways.

14.—(1) Where the owner or occupier of any premises fronting or abutting on any street repairable by the inhabitants at large habitually uses or permits to be used any kerbed footway or paved footway in such street as a

crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor-cycle) in passing to and from such premises the Corporation may either—

(a) require the construction across such footway of a carriage-crossing for the purpose aforesaid constructed of such materials and in such manner as they may prescribe; or

(b) allow the use of the footway for the purpose aforesaid subject to the condition that the footway is strengthened or adapted in such manner as the Corporation may prescribe or subject to such other reasonable conditions (if any) as they may impose.

(2) If the Corporation require the construction of any carriage-crossing across the footway or allow the use of the footway subject to a condition that it is strengthened or adapted they may execute such works as may be necessary to secure compliance with such requirement or condition and may recover the expenses of so doing and any expenses incurred by the Corporation in respect of any diversion alteration or relaying of the apparatus of statutory undertakers which may be necessary in consequence thereof from the owner or occupier.

(3) If the Corporation allow the use of the footway as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor-cycle) subject to any condition other than the strengthening or adaptation of the footway any person who knowingly uses or permits to be used the footway as a crossing as aforesaid in contravention of that condition shall be liable to a penalty not exceeding five pounds.

(4) Notwithstanding the provisions of section 18 of the 7 Edw. 7. Public Health Acts Amendment Act 1907 every person ^{c. 53.} desirous of forming a carriage-crossing across a footway in any street or of strengthening or adapting any part of any such footway as a carriage-crossing shall apply in writing to the Corporation for an estimate of the cost thereof and after having obtained such estimate may deposit with the Corporation the amount thereof. When such deposit shall have been made the Corporation shall with all convenient speed carry out the works and any difference between the sum so deposited and the actual cost of the works shall be paid to or by the Corporation by or to such person as the case may require.

(5) Nothing in this section shall impose on the owner or occupier any obligation to maintain any crossing constructed

PART III.
—cont.

or footway strengthened or adapted in pursuance of a requirement of or condition imposed by the Corporation under this section.

(6) Before requiring the construction of any carriage-crossing across the footway of a trunk road or allowing the use of such a footway subject to any condition the Corporation shall obtain the consent of the Minister of Transport.

Power to
provide
tubs for
trees &c.

15. The Corporation may provide and maintain in any street (including the footway) repairable by the inhabitants at large tubs for trees or plants:

Provided that this power shall not be exercised—

- (1) so as to hinder the reasonable use of the street by the public or any person entitled to use the same or so as to become a nuisance or injurious to any adjacent owner or occupier; or
- (2) in respect of a trunk road except with the consent of the Minister of Transport.

Stopping
up and
diversion of
highways.

16.—(1) Subject to the provisions of this section a court of summary jurisdiction if satisfied on the application of the Corporation that a highway within the borough is unnecessary may by order authorise the stopping up thereof and if so satisfied that a highway within the borough can be diverted so as to make it nearer or more commodious to the public may by order authorise it to be so diverted:

Provided that the Corporation shall not make an application under this section in regard to a county road without the consent of the county council which shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by the Minister of Transport.

(2) Any such application or order may be made with respect to any length of a highway and in the subsequent provisions of this section any reference to a highway shall be construed as a reference to that length thereof to which the application or order relates.

(3) No order shall be made under subsection (1) of this section unless the court is satisfied that notice of the intention to make the application specifying the time and place at which it is to be made and the order which will be asked for and embodying a plan showing what will be the effect of the order asked for—

- (a) has at least twenty-eight days before the date on which the application is made been served on the owners or reputed owners and the occupiers of all land abutting on the highway and (when the applica-

tion relates to a classified road as defined in the Local Government Act 1929) on the Minister of Transport and the county council; and

PART III.
—cont.
19 & 20
Geo. 5. c. 17.

- (b) has during at least twenty-eight days been exhibited in such manner and in such positions on or near the highway as are reasonably sufficient for notifying persons using the highway of the application;

and that a similar notice (except that there may be substituted for the plan a statement of the place where such a plan can be inspected at all reasonable hours without payment) has been inserted once at least in each of four successive weeks in a local newspaper circulating in the borough.

A notice which is required by this subsection to be served and which is sent by post shall be sent by registered post.

(4) On the hearing of such an application the Corporation and any person who is interested in land abutting on or served by the highway or uses the highway or is otherwise aggrieved shall have a right to be heard and an appeal against the decision of the court may be brought to quarter sessions either by the Corporation or by any such person as aforesaid who was or claimed to be heard by the court.

(5) For the purposes of the provisions of the Summary Jurisdiction Act 1879 as amended by the Summary Jurisdiction (Appeals) Act 1933 with respect to appeals to quarter sessions—

42 & 43 Vict.
c. 49.
23 & 24
Geo. 5. c. 38.

- (a) a refusal by a court of summary jurisdiction to make an order under this section shall be deemed to be an order;
- (b) in a case where more than two persons were heard or claimed to be heard in opposition to an application under this section it shall be sufficient if a notice of appeal against a refusal to make an order upon that application is served upon any two of those persons in addition to the clerk to the court of summary jurisdiction but any of those persons whether served with such a notice or not may appear at quarter sessions as respondents to the appeal;
- (c) any appeal under this section whether against an order or against a refusal to make an order shall be in the nature of a re-hearing.

(6) Every order made under this section shall have annexed thereto a plan signed by the chairman of the court and shall be binding on all persons whomsoever.

(7) Provided that—

- (a) nothing in this section shall authorise the diversion over any land of any highway unless the written

PART III.
—cont.

consent of every person having a legal interest in that land is produced to and deposited with the court; and

- (b) an order under this section authorising the diversion of a highway shall not authorise the stopping up of any part thereof until the new part to be substituted for the part stopped up has been completed to the satisfaction of two justices and a certificate to that effect signed by them has been transmitted by their clerk to the clerk of the peace for the county of East Sussex.

(8) Where an order is made by a court of summary jurisdiction under this section authorising the stopping up or diversion of a highway the clerk of the court shall forthwith transmit the order to the said clerk of the peace together if the order be for diverting a highway with the written consents produced to the court and the said clerk of the peace shall enrol any documents so transmitted to him and any certificates transmitted to him under subsection (7) of this section among the records of quarter sessions.

(9) Where any highway is diverted in accordance with an order made under this section the substituted highway shall be repairable by the person (if any) by whom the original highway was repairable.

(10) Any application or order under this section—

- (a) may include two or more highways which are connected with each other;
- (b) may relate to the stopping up or diversion of a highway for the purposes of all traffic or subject to the reservation of a bridle-way or footway.

(11) The Corporation and the owner of or other person interested in any land affected by the exercise of the powers of this section may enter into and fulfil agreements relative thereto and to the payment of any expenses incurred by the Corporation in or in consequence of the exercise of those provisions.

(12) The provisions of this section shall be in addition to and not in derogation of any other provisions relating to the stopping up and diversion of highways.

(13) The powers of this section shall not be exerciseable with respect to any trunk road.

For protection
of Postmaster-
General.

17.—(1) Where any highway or portion of a highway is stopped up in pursuance of an order made under section 16 (Stopping up and diversion of highways) of this Act the following provisions shall unless otherwise agreed in writing between the Corporation and the Postmaster-General have

effect in relation to any telegraphic line belonging to or used by the Postmaster-General which is under in upon over along or across such highway or portion of a highway at the time of such stopping up:—

PART III.
—cont.

- (a) The power of the Postmaster-General to remove the line shall be exerciseable notwithstanding the stopping up of the highway or portion of the highway so however that the said power shall not be exerciseable as respects the whole or any part of the line after the expiration of a period of three months from the date mentioned in subsection (2) of this section unless before the expiration of that period the Postmaster-General has given notice to the Corporation of his intention to remove the line or that part thereof as the case may be;
- (b) The Postmaster-General may by notice to the Corporation in that behalf abandon the said line or any part thereof and shall be deemed as respects the line or any part thereof to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it;
- (c) The Postmaster-General shall be entitled to recover from the Corporation the expense of providing in substitution for the line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the line a telegraphic line in such other place as the Postmaster-General may require;
- (d) Where under paragraph (b) of this subsection the Postmaster-General abandons the whole or any part of a telegraphic line it shall vest in the Corporation and the provisions of the Telegraph Acts 1863 to 1943 shall not apply in relation to the line or part in question as respects anything done or omitted after the abandonment thereof.

(2) As soon as the whole or any portion of any highway has been stopped up the Corporation shall send by post to the Postmaster-General a notice informing him of such stopping up and the period of three months mentioned in subsection (1) of this section shall commence to run from the date on which such notice is sent.

(3) In this section the expression "telegraphic line" has the same meaning as in the Telegraph Act 1878.

PART III.
—cont.
For protection
of certain
undertakers.

18. Except so far as may be otherwise agreed in writing between the Corporation and any of the undertakers as hereinafter defined the following provisions shall have effect:—

(1) In this section—

“ the undertakers ” means the mayor aldermen and burgesses of the borough of Brighton the Brighton Hove and Worthing Gas Company and the Brighton Intercepting and Outfall Sewers Board or any of them;

“ apparatus ” means—

(a) as regards the said mayor aldermen and burgesses the mains pipes and other apparatus belonging to them in connection with their water undertaking and the electric lines (as defined by the Electric Lighting Act 1882) and other works belonging to them in connection with their electricity undertaking;

(b) as regards the said gas company the mains pipes and other works or apparatus belonging to that company;

(c) as regards the said sewers board the sewers adits and other works belonging to that board:

- (2) Before commencing the stopping up or diversion of a highway or part of a highway under the powers of section 16 (Stopping up and diversion of highways) of this Act or of any order made thereunder the Corporation shall give to the undertakers not less than twenty-eight days' notice of their intention so to do:
- (3) If it shall be agreed between the undertakers and the Corporation or (in case of difference) determined by arbitration that in consequence of any such stopping up or diversion it is reasonably necessary that any apparatus of the undertakers situate in or under the highway or part of a highway proposed to be stopped up or diverted should be removed or diverted the undertakers may remove or divert the apparatus accordingly:
- (4) Any such diversion of apparatus shall be carried out in accordance with plans sections and particulars to be previously submitted by the undertakers to and reasonably approved by the Corporation:

Provided that unless within one month after the submission to them of any such plans sections and

particulars the Corporation intimate in writing to the undertakers the Corporation's objection thereto or make any requirement with reference thereto they shall be deemed to have approved the said plans sections and particulars as submitted to them:

- (5) Forthwith after the completion of any such removal or diversion of apparatus the undertakers shall to the reasonable satisfaction of the Corporation fill in the excavation and make good the surface of the ground:

- (6) The Corporation shall pay to the undertakers the amount of any expenses reasonably incurred by the undertakers in or in connection with—

(a) the diversion or removal of apparatus under or in accordance with the foregoing provisions of this section; or

(b) the cutting off of any apparatus of the undertakers from any other apparatus and the connecting of any new apparatus with any existing apparatus of the undertakers rendered necessary by reason or in consequence of the exercise of the powers of the said section 16; or

(c) the removal or any alteration of any communication or supply pipes service lines or service pipes or in the case of the said board any sewers or drains communicating with their apparatus rendered necessary by reason or in consequence of the exercise of such powers;

and shall indemnify the undertakers against all claims and demands by the owners or occupiers of premises supplied by means of any such communication or supply pipes service lines or service pipes or in the case of the said board by the owner of such sewers or drains or by the owners or occupiers of the premises served thereby:

- (7) Whenever by reason of the exercise by the Corporation of the powers of the said section 16 any apparatus (other than apparatus for which new apparatus is substituted at the expense of the Corporation under the foregoing provisions of this section) is rendered derelict useless or unnecessary the Corporation shall pay to the undertakers such a sum as may be agreed between the undertakers and the Corporation or as failing such agreement shall be determined by arbitration to be the value of such apparatus and such apparatus shall upon such payment become the property of the Corporation:

PART III.
—cont.

- (8) The Corporation shall also pay to the undertakers the reasonable cost of and incidental to the cutting off of any such apparatus as is referred to in the last foregoing paragraph from any other apparatus and of and incidental to any other works or things rendered reasonably necessary or expedient in consequence of any such apparatus being rendered derelict useless or unnecessary:
- (9) Any difference which may arise between the Corporation and the undertakers under this section (other than a difference as to the meaning or construction of this section which does not arise in the course of the arbitration) shall be referred to and determined by an arbitrator to be agreed upon between the parties or (failing agreement) to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice to the other and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to the reference.

As to
barriers
in streets.

19.—(1) At all times of ceremonies public processions rejoicings fairs exhibitions carnivals races sports or illuminations or on emergencies the Corporation may erect barricades across any of the streets of the borough and continue the same for such time as may be deemed reasonably necessary and any person who wilfully removes any such barricade or any part thereof shall be liable to a penalty not exceeding two pounds.

(2) For the purpose of the erection of such barricades the Corporation may construct or place and maintain in and under the surface of the streets of the borough such sockets or slots as may in their opinion be necessary or convenient but the Corporation shall not exercise the powers of this subsection in a trunk road except with the consent of the Minister of Transport.

Power to
make
regulations
as to
traffic on
carnival
&c. days.
10 & 11 Vict.
c. 89.

20.—(1) The powers conferred by section 21 (Power to make orders for preventing obstructions in the streets during public processions &c.) of the Town Police Clauses Act 1847 shall within the borough extend to enable the Corporation at all times of ceremonies public processions rejoicings fairs exhibitions carnivals races sports illuminations or similar occasions to direct the passage and stoppage of vehicles along or in particular streets to direct particular routes to be taken for particular descriptions of traffic and to prohibit the passage or stoppage of particular vehicles through or in certain streets at certain hours.

(2) The Corporation shall forthwith upon issuing a direction in pursuance of this section give notice thereof to the chief officer of police.

PART III.
—cont.

21. The Corporation shall not exercise the powers of the last two foregoing sections in such manner as to cause obstruction to or interference with the access to or exit from any station or depot of a railway company except with the consent of such company.

For protection
of railway
companies.

22.—(1) Every house erected after the passing of this Act shall be provided with sufficient and suitable accommodation for the storage of food and any owner who shall occupy or allow to be occupied any such house not so provided shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding one pound.

Food
storage
accommoda-
tion to be
provided.

(2) Every existing house and every house the erection of which was commenced but not completed before the passing of this Act shall where reasonably practicable be provided with sufficient and suitable accommodation for the storage of food and any owner who shall occupy or allow to be occupied any such house which can reasonably be so provided but which is not so provided after one month's notice from the Corporation requiring the same to be done shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding one pound.

(3) For the purposes of this section the expression "house" includes any part of a building which is occupied or intended to be occupied as a separate dwelling and the conversion of a building into two or more separate dwellings shall be deemed to be the erection of a house.

23.—(1) Every chimney erected in the borough after the passing of this Act for carrying smoke or steam or for the conveying away of any noisome or deleterious gases or effluvia from any buildings used for manufacturing or other purposes shall within such time as may be specified in that behalf in a notice given by the Corporation to the owner of such chimney be raised to such height measured from the level of the centre of the street nearest thereto as the Corporation shall reasonably require having regard to the use of such chimney the position of houses or other buildings near thereto the character of such buildings the levels of the neighbouring ground and any other condition requisite for consideration in determining such height and the Corporation may if they think fit contribute towards the cost of raising the chimney to comply with any such requirement:

Height of
chimneys.

Provided that before exercising the powers conferred by this section in relation to any chimney situated within one mile of

PART III.
—cont.10 & 11
Geo. 5. c. 80.

an aerodrome licensed pursuant to an order made under the Air Navigation Act 1920 or any Act amending replacing or consolidating that Act the Corporation shall obtain the consent of the Minister of Civil Aviation.

(2) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding two pounds.

(3) The provisions of this section shall not extend or apply to any building which may hereafter be constructed by or belong to a railway company in the exercise of their statutory powers so long as such building is held or used by such railway company primarily for railway purposes.

As to
erection of
hoardings
&c. at
street
corners.

24.—(1) No person shall place or erect in the borough any hoarding wall (not being a wall forming part of the structure of a permanent edifice) or fence at or within a distance of ten yards from the corner of any street unless he has given to the Corporation notice of his intention so to do accompanied by plans and particulars of the hoarding wall or fence and the Corporation have approved the placing or erection thereof under this section.

(2) Within one month from the receipt of such a notice from any person the Corporation may give him notice that they disapprove the placing or erection of the hoarding wall or fence or that they approve it only subject to such conditions or to such modifications of the plans and particulars submitted to them as may be specified in the notice:

Provided that a notice shall not be given under this subsection except on the ground that the hoarding wall or fence would by obstructing the view of foot passengers or drivers of vehicles constitute a danger to the traffic in the streets upon adjoining or near to which it is proposed to be placed or erected or (as the case may be) would constitute such a danger unless placed or erected subject to the conditions or modifications specified in the notice.

(3) The Corporation may at any time within the said month give notice that they approve the placing or erection of the hoarding wall or fence in accordance with the plans and particulars submitted to them and if within the said month the Corporation have not given notice under the last foregoing subsection they shall be deemed for the purpose of this section to have approved the placing or erection of the hoarding wall or fence in accordance with those plans and particulars.

(4) Where the Corporation have approved the placing or erection of the hoarding wall or fence it shall not be placed or erected otherwise than in accordance with the plans and particulars submitted as aforesaid or if notice has been given

under subsection (2) of this section of any conditions or modifications than in accordance with those conditions and with such plans and particulars as modified by the notice.

PART III.
—cont.

(5) Any person who places or erects any hoarding wall or fence in contravention of the provisions of this section shall be liable to a penalty not exceeding five pounds and the Corporation may remove the hoarding wall or fence so placed or erected and may recover the expense incurred by them in so doing from such person.

(6) For the purpose of this section the corner of any street shall be deemed to be the point at which the frontage or boundary line of that street (if necessary continued in a straight line) intersects the frontage or boundary line of any other street (if necessary similarly continued).

(7) The provisions of this section shall not apply to any part of a street with respect to which restrictions have been imposed under section 4 (Prevention of obstruction to view at corners) of the Roads Improvement Act 1925 or by section 1 (Power to adopt standard widths for roads) or section 2 (Restriction of building development along frontages of certain roads) of the Restriction of Ribbon Development Act 1935. 15 & 16
Geo. 5. c. 68.
25 & 26
Geo. 5. c. 47.

25.—(1) In this section “sign” means any banner streamer notice board sign or lettering for the purposes of advertisement or announcement (including the supports thereof) which is suspended or extends for more than two feet over any street or which extends for more than six inches over any street and is more than two feet six inches in height from the top to the bottom thereof. Signs over
streets.

(2) (a) If it appears to the Corporation that any sign which is placed over any street at the date of the passing of this Act is a source of danger or objectionable by reason of its size construction or situation or an injury to the amenities of the street over which it is placed they may by notice require the owner of or person responsible for the placing of such sign to remove it or to comply with such conditions as may be specified in the notice within such period not being less than seven days as may be specified in the notice.

(b) For a period of two years from the passing of this Act the foregoing provisions of this subsection shall not apply to any sign which was in use on the twenty-sixth day of November nineteen hundred and forty-six.

(3) (a) After the date of the passing of this Act no person shall without the consent of the Corporation place any sign over any street.

PART III.
—cont.

(b) The consent of the Corporation under this subsection shall not be withheld except on the ground that in their opinion the sign would be a source of danger or objectionable by reason of its size construction or situation or an injury to the amenities of the street and such consent may be given subject to such conditions as the Corporation may think fit.

(4) Any person who—

(a) neglects or refuses to comply with the requirement of any such notice as is referred to in subsection (2) of this section; or

(b) after the date of the passing of this Act places any sign over any street without the consent of the Corporation or without complying with any conditions attached to any such consent;

shall be liable to a penalty not exceeding one pound and to a daily penalty not exceeding ten shillings and the Corporation may themselves remove any such sign and any expense incurred by them in so doing may be recovered by them from such person.

Separate
sewers for
sewage and
surface
water.

26. For the purpose of facilitating the disposal of surface water and sewage the powers of the Corporation under section 157 of the Public Health Act 1875 shall extend to the making of byelaws requiring any person constructing a new street within the borough to provide separate sewers for the reception of surface water and of sewage respectively.

Water from
buildings
&c. to be
conveyed
to sewers.

27.—(1) The powers of the Corporation under section 21 of the Public Health Act 1925 shall extend to authorise them to require the execution and maintenance of such works as may be necessary to convey surface water from premises to which that section applies to some drain sewer or watercourse or the disposal of such surface water in such other manner as the Corporation may require.

(2) It shall be the duty of all owners of land or premises to provide lay and keep in repair such gutters drains channels and other works as may be requisite for complying with section 21 of the Public Health Act 1925 as amended by this section and for the purpose of laying and repairing the same the owner of any land or premises may take up so much of any street as may be requisite and such gutters drains channels and other works shall be laid and thereafter kept in good repair and condition and the street shall be reinstated under the direction of the surveyor and all damage occasioned to the street shall be made good by such owner to the satisfaction of the surveyor.

(3) In the event of default on the part of the owner of any land or premises to comply with the provisions of subsection (2) of this section the Corporation may execute any necessary work and recover the expense incurred by them in so doing from such owner.

28.—(1) In any case where it appears to the medical officer or the sanitary inspector that any drain water-closet or soil-pipe within the borough is stopped up the medical officer or the sanitary inspector shall give notice to the owner or occupier of the premises to remedy the defect and if such notice is not complied with within twenty-four hours from the service thereof the Corporation may carry out the work necessary to remedy the defect and may subject as hereinafter provided recover the expenses incurred in that behalf from such owner or occupier. As to defective drains &c.

(2) Upon any proceedings under this section the court may inquire whether any requirement contained in any notice given under this section or work done by the Corporation was reasonable and whether the expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such expenses or their apportionment as appears to the court to be just and equitable in the circumstances of the case.

(3) The provisions of this section shall not apply to any building (not being a dwelling-house or office) railway or work constructed by or belonging to or which may hereafter be constructed by or belong to any railway company in the exercise of their statutory powers or to any lands held or acquired by any such company with the authority of Parliament so long as any such building work or land is used or held by such company primarily for the purposes of their undertaking.

29.—(1) The Corporation may erect and maintain shelters and other accommodation for passengers at suitable stopping places within the borough on any of the routes along which any person is for the time being authorised to run public service vehicles. Shelters &c. for passengers.

(2) Such shelters and accommodation may be provided upon land held by the Corporation or with the consent of the Minister of Transport upon the highway but the Corporation shall not use for that purpose any part of a highway which is not vested in them without the consent of the highway authority which consent shall not be unreasonably withheld and may be given subject to such reasonable terms and conditions as such highway authority may think fit.

PART III.
—cont.

Any question which may arise as to whether any such consent is unreasonably withheld or whether any such terms or conditions are unreasonable shall be determined by the Minister of Transport.

(3) The Corporation may make byelaws for the regulation use and management of any such shelter and accommodation.

(4) The Corporation may enter into and fulfil agreements with any such person as is referred to in subsection (1) of this section for and in relation to the erection maintenance and use of any such shelters and other accommodation and as to the contributions to be made by any such person towards the cost of the provision and maintenance thereof.

(5) In this section the expression " public service vehicle " has the meaning assigned thereto by section 121 of the Road Traffic Act 1930.

20 & 21
Geo. 5. c. 43.

PART IV.

SANITARY PROVISIONS.

Removal of
infirm and
diseased
persons in
certain
cases.

30.—(1) If the medical officer certifies in writing—

(a) that any person in the borough (in this section referred to as " the patient ")—

(i) is aged or infirm or physically incapacitated and resides in premises which are insanitary owing to any neglect on the part of the occupier thereof or under insanitary conditions; or

(ii) is suffering from any grave chronic disease; and

(b) that the patient is unable to devote to himself or to receive from persons with whom he resides proper care and attention; and

(c) that thorough inquiry and consideration have shown the necessity in the interest of the health of the patient or for preventing injury to the health of or serious nuisance to other persons that he should be removed from the premises in which he is residing;

the medical officer may make application under this section to a court of summary jurisdiction.

(2) On any such application the court upon oral proof of the allegations in the certificate and subject (if they think fit) to examination of the patient by a registered medical practitioner nominated by the court may make an order for the removal of the patient to a suitable institution and for his detention and maintenance therein so long as the order remains in force.

(3) Where an order is for the time being in force for the detention and maintenance of the patient in a suitable institution a court of summary jurisdiction acting for the same place as the court which made the order may on the application of the medical officer make a further order for the transfer of the patient to another suitable institution and for his detention and maintenance therein so long as the further order remains in force.

(4) An order made under the foregoing provisions of this section shall unless rescinded under the next following subsection remain in force for such period not exceeding three months as may be determined by the order or such further period or periods each not exceeding three months as may be determined by a further order or orders made on the application of the medical officer by a court of summary jurisdiction acting for the same place as the court which made the original order:

Provided that no such further order shall be made unless the court are satisfied by the certificate of the medical officer of the institution in which the patient is for the time being detained and such further evidence (if any) as the court may require that the conditions which led to the making of the original order continue or would recur if the patient were no longer detained.

(5) At any time after the making of an order under the foregoing provisions of this section an application for the rescission of the order may be made by or on behalf of the patient to a court of summary jurisdiction acting for the same place as the court which made the order and the court may rescind the order accordingly if having regard to the circumstances of the case they are of the opinion that it is right and proper that it should be rescinded.

(6) No application shall be made under this section unless not less than three clear days' notice of intention to make the application and of the time and place when and where the application will be made has—

(a) in the case of an application under the last foregoing subsection been given by the patient or other person making the application to the medical officer; and

(b) in the case of any other application been given by the medical officer to the patient or to some person being in charge or formerly in charge of the patient.

(7) An order under this section may be addressed to such officer of the Corporation as the court making the order may

PART IV.
—cont.

think expedient and any person who wilfully disobeys or obstructs the execution of the order shall be liable to a penalty not exceeding ten pounds.

(8) The expenses of the removal or transfer of the patient to or from a suitable institution and of his detention and maintenance therein in pursuance of an order made under this section shall be borne by the Corporation and during any period for which the patient is so detained the Corporation may and if so required by the court shall make towards the maintenance of the dependants of the patient such contributions as the Corporation think fit or as may be directed by the court as the case may be:

Provided that—

(a) where the institution to which the patient is to be removed is a public assistance institution the authority to which the institution belongs may in the exercise of their powers under any scheme made under Part I of the Local Government Act 1929 assume such obligations with regard to the maintenance of the patient and his dependants as may be agreed between that authority and the Corporation; and

(b) nothing in this subsection shall apply to the cost of maintenance of the patient in a hospital vested in the Minister under the National Health Service Act 1946.

9 & 10 Geo. 6.
c. 81.

(9) The Corporation shall recover from the patient or from any person legally liable to maintain him or from the patient's estate if he has died any expenses incurred by them under subsection (8) of this section or if the Corporation are satisfied that the persons from whom the expenses are under this subsection recoverable cannot reasonably having regard to their financial circumstances be required to pay the whole of such expenses such part thereof (if any) as those persons are in the opinion of the Corporation able to pay.

(10) The powers of this section shall not be put into operation by the medical officer unless he is authorised by a resolution of the council so to do either generally or in any particular case in which those powers are proposed to be exercised and no order shall be made under this section for the removal or transfer of any person to a suitable institution without the consent in writing of the authority or body having the control thereof and such consent may be given subject to such conditions as may be agreed.

(11) In this section the expression "suitable institution" means a suitable hospital infirmary or other institution or other suitable place provided within the borough or within a convenient distance of the borough.

31.—(1) If the medical officer certifies in writing—

- (a) that any person is suffering from tuberculosis of the respiratory tract and is in an infectious state; and
- (b) that he is employed within the borough in the cooking preparation or handling of food intended for consumption by persons other than himself or members of his household; and
- (c) that his continuance in such employment would in the judgment of the medical officer be detrimental to the public health;

PART IV.
—cont.
Power to prohibit persons in advanced state of tuberculosis from selling &c. food.

the Corporation may request such person to stop his employment and on such request being made the Corporation may if they think fit make compensation to him in respect of any loss which he may sustain by reason of such stoppage.

(2) If any such person fails to comply with such request the Corporation may apply to a court of summary jurisdiction for an order requiring him to stop his employment and the court shall have power to make such an order if after consideration of all the circumstances it thinks fit to do so and may direct that such compensation as it deems equitable shall be paid by the Corporation to such person.

(3) If any such person fails to comply with any such order he shall be liable to a penalty not exceeding two pounds and to a daily penalty not exceeding ten shillings.

(4) This section shall not apply to any employment or occupation to which the Public Health (Prevention of Tuberculosis) Regulations 1925 apply.

32.—(1) As from the commencement of this section the following provisions shall have effect in the borough—

Registration of hawkers of food and their premises.

- (a) No person other than a person keeping open shop for the sale of food shall either by himself or by any person employed by him sell offer or expose for sale any food from any cart barrow or other vehicle or from any basket pail tray or other receptacle unless he is registered with the Corporation;
- (b) No premises shall be used as storage accommodation for any food intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle unless the premises are registered as aforesaid.

(2) An application for a person to be registered under this section shall be made by himself and an application for premises to be so registered shall be made by the owner or occupier or intending owner or occupier thereof.

PART IV.
—cont.

(3) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding two pounds and to a daily penalty not exceeding one pound.

(4) (a) The Corporation may refuse to register any person or premises under this section or (after giving one month's notice to the person registered or in whose name the premises are registered) may revoke the registration of any person or premises under this section if they are satisfied—

(i) as regards a person that the public health is or is likely to be endangered by any act or default of his in relation to the quality storage or distribution of food; or

(ii) as regards premises that the premises are not suitable to be used for the purposes aforesaid:

Provided that before refusing or revoking such registration the Corporation shall serve upon the person applying for registration or upon the person registered or in whose name such premises are registered a notice to appear before a committee of the council not less than seven days after the date of the notice to show cause why the Corporation should not for reasons to be specified in the notice refuse to register or revoke the registration of the person or premises. Any such notice shall state the effect of paragraphs (b) and (c) of this subsection.

(b) If the Corporation refuse to register or revoke the registration of any such person or premises they shall if required by the person applying for such registration or the person registered or in whose name the premises are registered deliver to him within seven days of the receipt of such requirement a statement in writing of the ground or grounds upon which such refusal or revocation is based.

(c) Any person appealing to a court of summary jurisdiction under section 65 (Appeals) of this Act against any such refusal or revocation shall do so within fourteen days from the date of the notice of such refusal or revocation.

(5) The medical officer the sanitary inspector or any other officer of the Corporation appointed for the purpose shall have power at all reasonable times to enter and inspect any premises in the borough in respect of which an application has been received for registration under the provisions of this section and also any premises which he shall have reason to believe are being used as storage accommodation for food intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle.

(6) The Corporation shall keep a register of the persons and premises registered under the provisions of this section.

(7) The provisions of this section shall not apply to any premises registered under section 14 (Registration of premises used in connection with the manufacture or sale of ice-cream or preserved food &c.) of the Food and Drugs Act 1938 or to any dairy or dairyman registered under Part II (Provisions as to milk dairies and artificial cream) of that Act or under any regulations made thereunder.

(8) The provisions of this section shall not apply to any premises used as a theatre cinematograph theatre music hall or concert hall or to any person in respect of the sale or offer or exposure for sale of any food in any such premises.

(9) In this section the expression " food " does not include any substance contained in containers of such materials and so closed as to exclude all risk of contamination.

(10) (a) The foregoing provisions of this section shall come into operation on but not until such date as may be fixed by a resolution of the council of which date public notice shall be given by the Corporation by advertisement in one or more local newspapers circulating in the borough.

Every such advertisement shall also state the effect of the said provisions and the date specified therein as the date on which such provisions shall come into operation shall not be less than one month after the date of publication of the advertisement:

Provided that the application for the registration required by subsection (1) of this section may be made and determined before the said provisions come into operation.

(b) A copy of a newspaper containing such advertisement shall be sufficient evidence of the publication of the advertisement.

(c) It shall be lawful for any person required to be registered under subsection (1) of this section who when the provisions of this section come into operation—

(i) is carrying on any business or using any premises for any purpose aforesaid; and

(ii) has made application in accordance with the provisions of this Act for such registration as is required by this section;

to continue to carry on such business and to use such premises for such purpose until such time as he has been informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (6) of section 65 (Appeals) of this Act.

33.—(1) Every person who being the occupier of any premises in the borough sells or exposes for sale or deposits for the purpose of sale or of preparation for sale or with a

Precautions
against
contamination
of food.

PART IV.
—cont.

view to future sale any food either on those premises or on land adjacent thereto shall take all such steps as may be reasonably necessary to guard against the contamination of such food by flies and shall cause such food to be so placed as to prevent mud filth or other contaminating substance being splashed or blown thereon.

(2) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding two pounds and to a daily penalty not exceeding ten shillings.

(3) In this section the expression “ food ” does not include—

- (a) milk;
- (b) meat to which the Public Health (Meat) Regulations 1924 apply; or
- (c) any substance which is contained in containers of such materials and so closed as to exclude all risk of contamination.

PART V.

FINANCE AND RATING.

Power to
borrow.

34.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority the sum or sums requisite for the payment of the costs charges and expenses of this Act and they shall pay off all moneys so borrowed within such period as the Corporation may determine not exceeding five years from the passing of this Act.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

As to
exercise of
borrowing
powers.
8 & 9 Geo. 6,
c. 18.

35. It shall not be lawful to exercise the powers of borrowing conferred by this Act otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945.

Application
of Act
of 1933 to
existing
sinking
funds.

36. Sections 213 and 214 of the Act of 1933 shall apply with respect to any sinking fund formed by the Corporation for the repayment of any money borrowed (otherwise than by the issue of stock) before the passing of this Act under any statutory borrowing power as if it had been borrowed by way of mortgage and the Corporation shall make such adjustments of any existing sinking funds as may be proper.

37.—(1) Notwithstanding anything contained in any enactment the Corporation (if they think fit) may on or after the thirty-first day of March nineteen hundred and forty-eight establish a fund to be called “ the consolidated loans fund ” to which shall be paid—

PART V.

—cont.

Consolidated
loans fund.

- (a) all moneys borrowed by the Corporation by the issue of any security and all moneys borrowed without security in connection with the exercise of any statutory borrowing power;
- (b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose; and
- (c) the appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys so borrowed or received and of all sums provided by the Corporation as aforesaid before the date on which the consolidated loans fund is established.

(2) The moneys in the consolidated loans fund shall be used or applied by the Corporation—

- (a) in the redemption of securities of the Corporation the purchase of bonds or stock for extinction or the repayment of any moneys borrowed by the Corporation; and
- (b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation:

And the moneys in the consolidated loans fund not used or applied in these ways or intended to be so used or applied within a reasonable period shall be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys in the consolidated loans fund shall not except with the consent of the Minister be used or applied otherwise than as provided in this section.

(3) There shall also be transferred to the consolidated loans fund such sums as are necessary to meet the interest charges and the financing and other revenue expenses connected with the management of that fund and separate accounts shall be kept of these sums and their application.

PART V.
—cont.

(4) The Corporation may pay into the consolidated loans fund any moneys forming part of any reserve renewal and repairs superannuation capital sea defence or other similar fund (hereinafter referred to as "the lending fund") and not for the time being required for the purposes for which the lending fund was established and such moneys shall be deemed to be moneys borrowed by the Corporation within the meaning of subsection (1) of this section and shall be used accordingly subject to the following conditions:—

- (a) The moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the lending fund was established; and
- (b) There shall be paid out of the consolidated loans fund to the general rate fund an amount equal to the interest on any moneys so used and for the time being not repaid to the lending fund at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the average rate of interest payable by the Corporation on their current borrowings and in the accounts of the general rate fund an amount equal to the interest as aforesaid shall (subject to any prescribed limit on the amount of the lending fund) be credited to the lending fund.

(5) Save as in this section expressly provided all the obligations of the Corporation to the holders of any securities of the Corporation shall continue in force.

(6) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be made by the Corporation and approved by the Minister and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

(7) Any scheme approved by the Minister under this section may be amended or revoked by a scheme made and approved in like manner as the original scheme.

Capital
fund.

38.—(1) The Corporation may (if they think fit) establish a fund to be called "the capital fund" to which they may pay any sums derived from the sale of any property of the Corporation the balance of the general rate fund in hand on the thirty-first day of March in any year and such other sums from the general rate fund (including a sum equal to the interest earned on the capital fund and the income (if any) arising from the application of the fund to the purposes authorised) as the council may by resolution direct not being moneys directed by law to be applied to any other purpose:

Provided that—

PART V.
—cont.

(a) any sum directed by the Corporation to be paid to the capital fund from the general rate fund (in addition to the sum equal to the interest earned on the capital fund and the income (if any) arising from the application of the fund to the purposes authorised) shall not exceed in any year the equivalent of a rate of twopence in the pound calculated according to the rules made pursuant to sections 9 and 58 of the Rating and Valuation Act 1925;

15 & 16
Geo. 5. c. 90.

(b) any sums derived from the sale of any corporate land of the Corporation as defined in section 305 of the Act of 1933 shall not be applied otherwise than in the purchase or acquisition of other corporate land except with the Minister's consent; and

(c) payments into the fund shall not be made whenever the fund amounts to the sum of fifty thousand pounds.

(2) The Corporation may apply the moneys in the capital fund (to an amount not exceeding ten thousand pounds in any one transaction) in the exercise of any statutory borrowing power possessed by them (other than a power in connection with an undertaking from which revenue is derived) or in providing money for payments into sinking funds in respect of loans raised under any such borrowing power (but not in making the annual payment required to be made thereto) or in the purchase or acquisition or taking on lease of any lands or buildings which they are authorised to purchase or acquire or take on lease.

(3) (a) Pending the application of the capital fund to the purposes authorised in the foregoing subsection the moneys in the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the capital fund in the manner provided by the foregoing paragraph of this subsection and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund.

(4) All moneys derived from the sale of any property of the Corporation which are applied from the capital fund under the provisions of this section shall be repaid from the account to which such moneys were advanced by such annual instalments with or without interest and within such period as may be determined by the Corporation:

Provided that where the advance is in the exercise of a statutory borrowing power such period shall not exceed the period prescribed for the repayment of moneys borrowed under that power.

PART V.
—cont.Sea
defence
reserve
fund.

39.—(1) The Corporation may (if they think fit) establish a fund to be called “ the sea defence reserve fund ” to which they may pay any sum not exceeding in any year the equivalent of a rate of one penny in the pound calculated according to the rules made pursuant to sections 9 and 58 of the Rating and Valuation Act 1925 and the maximum amount standing to the credit of such fund shall from time to time be determined by the Corporation.

(2) (a) Pending the application of moneys forming part of the sea defence reserve fund to the purposes authorised by subsection (3) of this section such moneys shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the sea defence reserve fund in manner provided by this subsection together with any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to the limitation imposed by subsection (1) of this section) an amount equivalent to such income shall be credited to the sea defence reserve fund.

(3) The sea defence reserve fund shall be applicable to the construction of works as a defence against the sea and to make good any damage and to meet any extraordinary claim or demand arising from accident to any of such works and so that if at any time the fund be reduced it may thereafter be again restored to the maximum sum determined by the Corporation and so from time to time as often as such reduction happens.

(4) Resort may be had to the sea defence reserve fund although such fund may not at the time have reached or may have been reduced below the maximum sum determined by the Corporation.

Renewal
and
repairs
fund.

40.—(1) The Corporation may (if they think fit) establish a fund to be called “ the renewal and repairs fund ” for the purpose of defraying the expenditure to be incurred from time to time in repairing maintaining and renewing any buildings works plant tools machinery appliances horses carts vehicles boilers and equipment and apparatus in connection therewith office machinery furniture fittings and appliances or things and may from time to time apply any fund so established or any part thereof in defraying such expenditure but this section shall not apply to any buildings works plant appliances or things for the purposes of any undertaking of the Corporation in respect of which they have provided a reserve fund or to any building in respect of which they are required by the Acts relating to housing to keep a housing repairs account.

(2) The Corporation may from time to time pay out of the general rate fund such sums as they think fit into the renewal and repairs fund but the maximum amount standing to the credit of that fund shall not at any time exceed fifty thousand pounds.

(3) (a) Pending the application of moneys forming part of the renewal and repairs fund to the purposes authorised by this section such moneys shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the renewal and repairs fund in manner provided by this subsection together with any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and an amount equivalent to such income shall be credited to the renewal and repairs fund unless the amount standing to the credit of that fund amounts to fifty thousand pounds.

(4) Resort may be had to the renewal and repairs fund although that fund may not at the time have reached or may have been reduced below the prescribed maximum.

41.—(1) The Corporation shall keep their accounts in respect of each of their undertakings as from time to time existing from which revenue is derived (each of which is in this section separately referred to as “the undertaking”) so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division on the one side all receipts in respect of the undertaking (including the income from any authorised fund provided in connection with the undertaking) and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts representing—

Accounts
of under-
takings.

- (a) the working and establishment expenses and cost of maintenance of the undertaking;
- (b) the interest on moneys borrowed by the Corporation for the purposes of or connected with the undertaking or used for those purposes under any enactment;
- (c) the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;
- (d) all other expenses (if any) of the undertaking properly chargeable to revenue;
- (e) the amount (if any) paid to any reserve fund which the Corporation are from time to time authorised to maintain; and

PART V.
—cont.

(f) any money expended on any of the purposes mentioned in the next following section other than money paid to a reserve fund.

(2) The Corporation shall show in their accounts relating to any undertaking all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking.

(3) In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

Application
of general
rate fund for
certain
purposes.

42.—(1) If in respect of any year the moneys received by the Corporation on account of the revenue of any of the undertakings of the Corporation from which revenue is derived (including the interest and other annual proceeds received by the Corporation in that year on the investments representing or forming part of any authorised fund provided in connection with the undertaking) shall exceed the moneys expended or applied by the Corporation out of the general rate fund in respect of that undertaking for the several purposes mentioned in paragraphs (a) (b) (c) and (d) of subsection (1) of the last preceding section the Corporation may in respect of that year (if they think fit but subject to the provisions hereinafter contained) apply out of the general rate fund a sum not exceeding the amount of such excess to any of the following purposes:—

- (a) In reduction of capital moneys borrowed for the purposes of the undertaking;
- (b) In the renewal and (subject in the case of the electricity undertaking to the consent of the Electricity Commissioners as respects expenditure chargeable to capital account) the construction extension or improvement of any works and conveniences for the purposes of the undertaking or in payment of any expenses in respect of the undertaking which might otherwise have been defrayed out of capital moneys;
- (c) In providing a reserve fund in respect of the undertaking by setting aside such an amount as they may from time to time think reasonable and (unless the amounts so set aside are used in any other manner authorised by any enactment) investing the same in statutory securities until the fund so formed amounts

(i) in the case of the electricity undertaking to a sum equal to one-tenth of the aggregate capital expenditure of the Corporation on that undertaking; and
(ii) in the case of any other undertakings to the maximum of the reserve fund for the time being prescribed by the Corporation.

(2) Any reserve fund which has been provided in respect of any undertaking of the Corporation and which is in existence on the first day of April nineteen hundred and forty-eight shall be carried to and form part of any reserve fund provided under this section in respect of such undertaking.

(3) Any reserve fund provided under this section or any money set aside for the purposes thereof may be applied—

(a) in making good to the general rate fund any deficiency at any time happening in the income of the Corporation from the undertaking in connection with which it is formed; or

(b) in meeting any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking; or

(c) (subject in the case of the electricity undertaking to the consent of the Electricity Commissioners as respects expenditure chargeable to capital account) in or towards the payment of the cost of acquiring land for or renewing improving or extending any works forming part of the undertaking or otherwise for the benefit thereof;

and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(4) Resort may be had to a reserve fund provided under this section although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

43.—(1) The Corporation may give notice to any person being registered as a holder of any security of the Corporation (other than stock) that they intend to send interest or dividends to him by post if he does not object and if such person does not within fourteen days from the receipt of such notice give notice to the Corporation of such objection the Corporation may from time to time send orders for the payment of interest or dividend warrants by post to the address of such person appearing in the register: Dividend warrants by post.

Provided that if such person give notice to the Corporation that he desires such orders or warrants to be sent to another

PART V.
—cont.

person at a given address the Corporation may from time to time send the same by post to such other person at such address.

(2) Where more persons than one are registered as joint holders of any security of the Corporation any one of them may for the purpose of this section be regarded as the holder of the security unless notice in writing to the contrary has been given to the Corporation by any other of them.

(3) The posting by the Corporation of an order for the payment of interest or a dividend warrant in pursuance of this section shall as respects the liability of the Corporation be equivalent to the delivery of the order or warrant to the registered holder of the security.

(4) Every order or warrant so sent by post shall be deemed to be a cheque and the Corporation shall in relation thereto be deemed a banker within the Bills of Exchange Act 1882.

45 & 46 Vict.
c. 61.

Receipts
in case of
minors.

44. If any money is payable to a holder of any security of the Corporation being a minor the receipt of his guardian shall be a sufficient discharge to the Corporation.

Payments
due to
deceased
employees.

45.—(1) If on the death of an employee (which expression in this section includes a former employee or pensioner of the Corporation or other person) to whom or to whose personal representative a sum not exceeding one hundred pounds is due from the Corporation on account of salary wages superannuation allowance gratuity grant or repayment of contributions to any superannuation fund or of contributions otherwise made in respect of superannuation with or without interest a grant of probate of the will of the employee or of letters of administration to his estate is not produced to the Corporation within such time (not being less than one month after his death) as the Corporation may think reasonable then at the expiration of that time the Corporation may pay such sum to the person or persons entitled to the residuary estate of the employee by virtue of the provisions of paragraphs (i) to (vi) inclusive of section 46 (1) of the Administration of Estates Act 1925 and section 9 of the Legitimacy Act 1926 to the intent that such sum shall be applied in due course of administration:

15 & 16
Geo. 5. c. 23.
16 & 17
Geo. 5. c. 60.

Provided that—

(a) the Corporation may (notwithstanding the receipt of a notice under paragraph (b) of this subsection) if they think fit pay out of such sum the funeral expenses of the deceased employee or so much thereof as the Corporation consider reasonable having regard to any death grant which has been or is to be paid under section 22 of the National Insurance Act 1946;

9 & 10 Geo. 6,
c. 67.

(b) if the Corporation receive notice in writing of any claim against the estate of the deceased employee at any time before they shall have paid the whole of such sum in accordance with the provisions of this subsection they shall not (except in any case in which the provisions of section 46 (1) (vi) of the Administration of Estates Act 1925 are applicable) pay such sum or the balance thereof in their hands to any person other than to the personal representative of the deceased employee unless and until such claim has been satisfied disproved or withdrawn.

(2) Before paying any sum in accordance with the provisions of subsection (1) of this section (except under the proviso (a) thereof) to any person other than the personal representative of the deceased employee the Corporation shall require either—

(a) a statutory declaration or (when payment is made to the Crown or to the Duchy of Lancaster or to the Duchy of Cornwall) a statement by the person or one of the persons to whom the Corporation may pay and propose to pay such sum or any part thereof to the effect that the total estate of the deceased employee (including such sum but after deduction of debts and funeral expenses) does not exceed one hundred pounds; or

(b) the production of a certificate from the Commissioners of Inland Revenue to the effect either that no death duties are payable in respect of such sum or that any duties so payable have been paid.

46.—(1) The Corporation may if they think fit grant a gratuity by way either of a lump sum or of periodical payments to the widow or dependants of any employee who may die in their service not exceeding in the aggregate an amount equal to twice the amount of the annual emoluments of the employment:

Power to grant allowances or gratuities in certain cases.

Provided that this section shall not apply—

(a) in the case of a widow to whom a pension is granted in pursuance of section 9 (Allocation of part of superannuation benefits to wife or husband) of the Local Government Superannuation Act 1937; or

1 Edw. 8 &
1 Geo. 6.
c. 68.

(b) in the case of a widow or dependant entitled in consequence of the death of such employee to compensation under the Workmen's Compensation Act 1925 or to death benefit under the National Insurance (Industrial Injuries) Act 1946.

15 & 16
Geo. 5. c. 84.
9 & 10
Geo. 6. c. 62.

PART V.
—cont.

(2) Every such allowance or gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such employee would have been charged or been paid if he had continued in his employment.

Recovery
of rate &c.
from persons
removing.

47. If a justice is satisfied on complaint by any officer of the Corporation duly authorised that any person is quitting or about to quit any premises in the borough and has failed to pay on demand any general rate or electricity charge which may be due from him and intends to evade payment of the same by departing from the said premises the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the person named therein forthwith to enter the premises and to seize sufficient goods and chattels of the defaulter to meet the claim of the Corporation and to detain them until the complaint is determined upon the return of the summons.

As to
recovery
of rates
from
tenants
and
lodgers.

48. For the purposes of section 15 of the Rating and Valuation Act 1925 the rates due from the person rated for any hereditament within the borough shall be deemed to be in arrear if such rates are not paid within two months after lawful demand in writing has been made for the same.

Recovery
of rates
from
certain
owners.

49.—(1) Where the owner of any hereditament has agreed with the occupier thereof that the owner shall pay the general rate charged on such hereditament the owner shall be liable to pay to the Corporation so much of any payment in respect of rent received by him from the occupier as shall represent the proportion of rate included in such payment and so much of such payment may on proof of such agreement be recovered by the Corporation from the owner in the same manner and subject to the same conditions under and subject to which rates are recoverable from occupiers of rated hereditaments.

The remedy of the Corporation under this section shall be in addition and without prejudice to their other remedies for the recovery of rates.

(2) For the purposes of this section the expression "owner" in relation to a hereditament means the person who is entitled to receive the rent payable in respect thereof.

(3) This section shall not apply to any hereditament to which subsection (1) of section 11 of the Rating and Valuation Act 1925 applies by virtue of a resolution of the Corporation.

PART VI.

MISCELLANEOUS.

50.—(1) The Corporation may pay—

Subscriptions
to local
government
associations
and other
expenses.

(a) reasonable subscriptions whether annually or otherwise to the funds of any association of local government authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendances of any members or officers of the Corporation at conferences or meetings of such associations or any of them and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings; and

(b) the reasonable expenses of the Corporation in providing public entertainments on the occasion of or otherwise in connection with public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the borough.

(2) The Corporation may pay reasonable expenses in connection with the presentation of the freedom of the borough to persons whom the council may resolve to admit as honorary freemen.

51.—(1) The Corporation may accept a capital sum for the purpose of maintaining either for a period or in perpetuity a grave or grave space or monument either in a cemetery provided under the Public Health Acts or in a burial ground provided under the Burial Acts 1852 to 1906. Maintenance of graves.

(2) The Corporation may apply for the purposes of this section any sum of money received by them before the passing of this Act in consideration of such maintenance.

(3) All such sums (unless applied in any manner duly authorised) shall be invested in statutory securities and an amount equal to the interest thereon shall be applied in maintaining graves grave spaces and monuments in such manner as the Corporation think fit.

(4) Any such capital and the interest thereon shall be shown separately in the accounts of the Corporation relating to their cemetery or burial ground.

52. The Corporation may provide and maintain weighing machines for weighing persons in any premises belonging to them and may charge for the use thereof. Provision of weighing machines.

PART VI.
—cont.
Further
powers for
acquisition
of lands.

53.—(1) The Corporation notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable that the Corporation should acquire for or in connection with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the borough.

(2) When any lands purchased or acquired or taken on lease by the Corporation under this section shall be appropriated to any undertaking or to any of their powers or duties a transfer of the outstanding loan in respect thereof shall be effected to the proper account in the books of the Corporation and pending such appropriation all expenses incurred by the Corporation under this section shall be payable out of the general rate fund.

Undertakings
to bind
successive
owners.

54.—(1) Every undertaking or agreement expressed to be given or made in pursuance of this section and being—

- (a) an undertaking given by or to the Corporation to or by the owner of any legal estate in land or property; or
- (b) an agreement between the Corporation and any such owner;

on the passing of plans or otherwise in connection with such land or property shall be binding upon such owner and his successors in title and all persons claiming through or under him or them and upon the Corporation and such owner and other persons upon whom such undertaking or agreement is binding shall be entitled to require from the Corporation a copy thereof.

15 & 16
Geo. 5. c. 22.

(2) Any such undertaking or agreement shall be treated as a local land charge for the purposes of the Land Charges Act 1925.

(3) Any such undertaking or agreement shall not be binding upon any person in whom any other legal estate in such land or property is vested at the date thereof nor upon his successors in title unless such person joins in such undertaking or agreement.

Superannua-
tion of
employees
of central
valuation
committee.

2 & 3 Geo. 6.
c. 18.

55.—(1) The Corporation and the central valuation committee constituted in pursuance of section 57 of the Rating and Valuation Act 1925 may enter into and fulfil agreements for admitting all or any of the employees of the said committee to participate in the benefits of the superannuation fund of the Corporation on such terms and conditions as may be agreed and when such agreement is made the provisions of the Local Government Superannuation Acts 1937 and 1939 shall have effect in relation to the said committee and any

employee so admitted as if the committee were a local authority and the employee were a contributory employee in the service of a local authority subject however to such modifications thereof as may be mentioned in the agreement:

PART VI.
—cont.

Provided that an agreement under this section shall not have effect until it has been approved by the Minister and may be amended by a subsequent agreement so approved.

(2) The signature of the chairman of the said committee to any agreement under this section shall be sufficient authentication thereof on their behalf.

PART VII.

GENERAL.

56. Where under any enactment the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Breach of
conditions
of consent.

57. Whenever the Corporation or any of their officers under any enactment execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to execute re-execute or alter such work or do such act or thing the Corporation or their officer shall not as between themselves or himself and such owner occupier or other person in the absence of any negligence on their or his part or the part of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation or such officer in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall accordingly be recoverable by the Corporation or such officer.

In executing
works for
owner
Corporation
liable for
negligence
only.

58. Where under the provisions of any local Act for the time being in force in the borough the Corporation construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those provisions are recoverable from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Apportion-
ment of
expenses
in case of
joint
owners.

PART VII.

—cont.

Damages and
charges to
be settled
by court.

59. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence under this Act the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

Compensation
how to be
determined.

60. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Public Health Act 1936.

Saving for
indictments
&c.

61. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act:

Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Restriction
on right to
prosecute.

62. Section 298 (Restriction on right to prosecute) of the Public Health Act 1936 shall apply to offences created by or under any of the following provisions of this Act as if they were offences created by or under that Act (namely):—

- (1) Section 7 (Power to prohibit or restrict use of esplanade);
- (2) Part III (Streets and buildings) except section 20 (Power to make regulations as to traffic on carnival &c. days); and
- (3) Part IV (Sanitary provisions).

Confirming
authority
for byelaws.

63. As respects byelaws made under this Act the confirming authority for the purposes of section 250 of the Act of 1933 shall be—

- (1) in the case of byelaws under section 29 (Shelters &c. for passengers) the Secretary of State; and
- (2) in any other case the Minister.

Inquiries
by Ministers.

64. The Minister and the Minister of Transport may hold such inquiries as they may consider necessary in regard to the exercise of any powers conferred upon them or the giving of consents under this Act and section 290 of the Act of 1933 shall apply accordingly.

65.—(1) Any person aggrieved by any requirement refusal or other decision of the Corporation or of any officer thereof under Part III (Streets and buildings) and Part IV (Sanitary provisions) of this Act (except a requirement under section 28 (As to defective drains &c.)) may except when some other right of appeal is conferred by this Act appeal to a court of summary jurisdiction.

(2) The procedure upon any such appeal shall be by way of complaint for an order and the Summary Jurisdiction Acts shall apply to the proceedings.

(3) The time within which any such appeal may be brought shall except where otherwise expressly provided be twenty-one days from the date on which notice of the requirement refusal or decision was published or served upon the person desiring to appeal and for the purposes of this subsection the making of the complaint shall be deemed to be the bringing of the appeal.

(4) In any case in which such an appeal lies the document notifying the requirement refusal or decision in the matter shall state the right of appeal to a court of summary jurisdiction and the time within which such an appeal may be brought unless these have already been stated in a notice to the person concerned informing him of his right to a hearing before the Corporation or a committee of the council with regard to the same matter.

(5) Where a person aggrieved by any order determination or other decision of a court of summary jurisdiction under this Act is not by any other enactment authorised to appeal to a court of quarter sessions he may appeal to such a court.

(6) Where any requirement refusal order determination or other decision against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action or makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of such requirement refusal order determination or other decision or to use any premises for any purpose for which they were lawfully used up to such time—

(a) no proceedings in respect of any failure to execute the work or take the action shall be taken;

(b) the Corporation shall not execute such work or take such action; and

(c) any such person may carry on such business and use such premises for such purpose;

until the time for appealing has expired or when an appeal is lodged until the appeal has been disposed of or withdrawn or fails for non-prosecution thereof.

PART VII.

—cont.

(7) Where upon an appeal under this Act a court varies or reverses any requirement refusal or other decision of the Corporation effect shall be given to the order of the court and in particular any necessary consent certificate or other document shall be granted or issued and any necessary entry in any register shall be made.

Application
of provisions
of Public
Health Act
1936.

66.—(1) The sections of the Public Health Act 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

- Section 271 (Interpretation of “provide”);
- Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers);
- Section 276 (Power of local authority to sell certain materials);
- Section 277 (Power of councils to require information as to ownership of premises);
- Section 283 (Notices to be in writing; forms of notices &c.);
- Section 284 (Authentication of documents);
- Section 285 (Service of notices &c.);
- Section 286 (Proof of resolutions &c.);
- Section 287 (Power to enter premises);
- Section 288 (Penalty for obstructing execution of Act);
- Section 289 (Power to require occupier to permit works to be executed by owner);
- Section 291 (Certain expenses recoverable from owners to be a charge on the premises; power to order payment by instalments);
- Section 292 (Power to make a charge in respect of establishment expenses);
- Section 293 (Recovery of expenses &c.);
- Section 294 (Limitation of liability of certain owners);
- Section 295 (Power of local authority to grant charging orders);
- Section 296 (Summary proceedings for offences);
- Section 297 (Continuing offences and penalties);
- Section 299 (Inclusion of several sums in one complaint &c.);
- Section 304 (Judges and justices not to be disqualified by liability to rates);
- Section 328 (Powers of Act to be cumulative); and
- Section 329 (Saving for certain provisions of the Land Charges Act 1925):

Provided that the said sections 277 287 288 289 291 292 294 295 and 329 shall only apply to the provisions contained in Part III (Streets and buildings) and Part IV (Sanitary provisions) of this Act.

(2) Sections 283 284 285 293 296 and 299 of the Public Health Act 1936 shall extend and apply in relation to any local Act for the time being in force in the borough as if such sections were re-enacted in that local Act and in terms made applicable thereto.

67. The following provisions for the protection of the Brighton Hove and Worthing Gas Company (in this section referred to as "the company") shall unless otherwise agreed in writing between the Corporation and the company apply and have effect:—

For protection
of Brighton
Hove and
Worthing Gas
Company.

- (1) In this section the expression "apparatus" means and includes all or any mains pipes and other works or apparatus belonging to the company:
- (2) Notwithstanding anything contained in or done under section 7 (Power to prohibit or restrict use of esplanade) of this Act it shall be lawful for the company their contractors and agents and any person in the employ of them or any of them to enter with or without vehicles upon the esplanade and to execute and do all such works and things in upon or under the esplanade as may be necessary for laying placing inspecting repairing maintaining removing or renewing any apparatus therein or thereunder:
- (3) Nothing in section 9 (No buildings to be erected until street formed) of this Act or in any requirement of the Corporation thereunder shall prevent or restrict the company from beginning to erect or proceeding with the erection of a pressure governor house for the purposes of their undertaking abutting on any new street or part of a new street before such new street or part thereof is constructed or sewered in accordance with any such requirement:
- (4) The provisions of section 10 (Further powers as to future line of street) of this Act shall not apply to any building or erection used by the company for the manufacture or storage of gas and situate on land specifically authorised by Parliament to be used for those purposes or either of them unless the consent of the company is obtained by the Corporation:

Provided that such consent shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be determined by the Minister:

PART VII.
—cont.

- (5) In the exercise of the powers of section 11 (Planting of trees in streets) of this Act the Corporation shall not obstruct or render less convenient the access to any apparatus or without the consent of the company (such consent not to be unreasonably withheld) increase or reduce the cover over any apparatus by an amount exceeding six inches:
- (6) Not less than twenty-eight days before the Corporation pursuant to section 14 (Crossings over footways) of this Act—
- (a) make or require the construction of a carriage-crossing across any portion of any footway in or under which portion any apparatus is for the time being situate; or
 - (b) allow the use of any such portion of any footway as a crossing subject to the condition that it is strengthened or adapted;
- the Corporation shall give notice to the company and if in consequence of the making of the crossing across such portion of any footway or the strengthening or adaptation of such portion of any footway it shall be reasonably necessary to alter the position or depth of the apparatus under the footway the company may (and if so required by the Corporation shall) alter the apparatus by relaying the apparatus in such position and at such depth as may be reasonable:
- (7) The company within seven days after the receipt of the notice from the Corporation referred to in subsection (6) of this section shall give to the Corporation not less than seven days' notice of their intention to divert or alter the position or depth of any apparatus (otherwise than on the requirement of the Corporation) and shall at the same time deliver to the Corporation a plan and section of the proposed diversion alteration or relaying. If such plan and section are not disapproved by the Corporation within fourteen days from the receipt thereof the position and depth of the apparatus shown thereon shall be deemed to be reasonable:
- (8) The Corporation shall pay to the company the amount of any expenses reasonably incurred by the company in or in connection with—
- (a) the relaying or alteration of apparatus under or in accordance with subsection (6) of this section; or

(b) the removal or any alteration of any communication or supply pipes or service lines rendered necessary by reason or in consequence of any such relaying or alteration:

(9) The provisions of section 23 (Height of chimneys) of this Act shall not extend or apply to any chimney erected or being erected by the company on any land which they are now or may hereafter be specifically authorised by Parliament or by special order made by the Minister of Fuel and Power to hold and use for the manufacture or storage of gas and which is used for the purpose of the company's undertaking under the provisions of any Act of Parliament or Order:

(10) If any shelter erected by the Corporation under the powers of section 29 (Shelters &c. for passengers) of this Act is situate over any apparatus laid or placed before the erection of the shelter and the company at any time after such erection give to the Corporation notice of their desire to obtain access to any such apparatus the Corporation shall either remove temporarily the shelter or so much thereof as shall require to be removed in order to afford such access or (if the Corporation determine not to remove the shelter or part thereof) bear any additional expense due to the existence of the shelter which may reasonably be incurred by the company in obtaining such access:

(11) Any difference which may arise between the Corporation and the company under or with reference to the provisions of this section shall (except where otherwise provided) be referred to and determined by an arbitrator to be agreed upon between the parties or (failing agreement) to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice to the other and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to the reference.

68. The following provisions for the protection of the mayor aldermen and burgesses of the borough of Brighton (in this section referred to as "the Brighton Corporation") shall unless otherwise agreed in writing between the Corporation and the Brighton Corporation apply and have effect:—

For protection
of Brighton
Corporation.

(1) In this section "apparatus" means the mains pipes and other apparatus belonging to the Brighton Corporation in connection with their water undertaking and the electric lines (as defined by the Electric

PART VII.
—cont.

Lighting Act 1882) and other works belonging to the Brighton Corporation in connection with their electricity undertaking:

- (2) Notwithstanding anything contained in or done under section 7 (Power to prohibit or restrict use of esplanade) of this Act it shall be lawful for the Brighton Corporation their contractors and agents and any person in the employ of them or any of them to enter with or without vehicles upon the esplanade and to execute and do all such works and things in upon or under the esplanade as may be necessary for laying placing inspecting repairing maintaining removing or renewing any apparatus therein or thereunder:
- (3) The Corporation shall so exercise the powers of section 11 (Planting of trees in streets) of this Act as not to obstruct or render less convenient the access to any apparatus and shall so maintain every tree planted under the powers conferred by that section that the same does not injuriously affect any apparatus:
- (4) Not less than twenty-eight days before the Corporation pursuant to section 14 (Crossings over footways) of this Act—
 - (a) make or require the construction of a carriage-crossing across any portion of any footway in or under which portion any apparatus is for the time being situate; or
 - (b) allow the use of any such portion of any footway as a crossing subject to the condition that it is strengthened or adapted;the Corporation shall give notice to the Brighton Corporation and if in consequence of the making of the crossing across such portion of any footway or the strengthening or adaptation of such portion of any footway it shall be reasonably necessary to alter the position or depth of the apparatus under the footway the Brighton Corporation may (and if so required by the Corporation shall) alter the apparatus by relaying the apparatus in such position and at such depth as may be reasonable:
- (5) The Brighton Corporation within seven days after the receipt of the notice from the Corporation referred to in subsection (4) of this section shall give to the Corporation not less than seven days' notice of their intention to divert or alter the position or

depth of any apparatus (otherwise than on the requirement of the Corporation) and shall at the same time deliver to the Corporation a plan and section of the proposed diversion alteration or relaying. If such plan and section are not disapproved by the Corporation within fourteen days from the receipt thereof the position and depth of the apparatus shown thereon shall be deemed to be reasonable:

- (6) The Corporation shall pay to the Brighton Corporation the amount of any expenses reasonably incurred by the Brighton Corporation in or in connection with—

(a) the relaying or alteration of apparatus under or in accordance with subsection (4) of this section; or

(b) the removal or any alteration of any communication or supply pipes or service lines rendered necessary by reason or in consequence of any such relaying or alteration:

- (7) If any structure erected by the Corporation under the powers of section 29 (Shelters &c. for passengers) of this Act is situate over any apparatus laid or placed before the erection of the structure and the Brighton Corporation at any time after such erection give to the Corporation notice of their desire to obtain access to such apparatus the Corporation shall either remove temporarily the structure or so much thereof as shall require to be so removed in order to afford such access or (if the Corporation determine not to remove the structure or part thereof) bear any additional expense due to the existence of the structure which may reasonably be incurred by the Brighton Corporation in obtaining such access:

- (8) Any difference which may arise between the Corporation and the Brighton Corporation under this section (other than a difference as to the meaning or construction of this section which does not arise in the course of the arbitration) shall be referred to and determined by an arbitrator to be agreed upon between the parties or failing such agreement to be appointed on the application of either party (after notice to the other of them) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to the reference.

PART VII.

—cont.

For protection
of the
Brighton
Intercepting
and Outfall
Sewers
Board.

69. The following provisions for the protection of the Brighton Intercepting and Outfall Sewers Board (in this section referred to as "the board") shall unless otherwise agreed in writing between the Corporation and the board apply and have effect:—

- (1) In this section "works" means all or any sewers adits and other works belonging to the board:
- (2) Notwithstanding anything contained in or done under section 7 (Power to prohibit or restrict use of esplanade) of this Act it shall be lawful for the board their contractors and agents and any person in the employ of them or any of them to enter with or without vehicles upon the esplanade and to execute and do all such works and things in upon or under the esplanade as may be necessary for laying placing inspecting repairing maintaining removing or renewing any works therein or thereunder.

Repeal of
obsolete
enactments.

70. The following provisions which have been superseded or which have ceased to have effective operation are hereby repealed:—

The Act of 1873—

- | | |
|------------|--|
| Section 6 | (Property &c. of existing Commissioners &c. to vest in and be carried over to Commissioners); |
| Section 7 | (Repeal and vesting not to affect acts done under recited Acts); |
| Section 8 | (Arrangements as between existing Commissioners and Commissioners); |
| Section 9 | (Provision for payment of existing debts); |
| Section 10 | (Annual return to Local Government Board with respect to sinking fund); |
| Section 11 | (Borrowing powers under "The Public Health Act 1848" to apply to existing debts); |
| Section 12 | (Transfers of securities to be registered); |
| Section 13 | (Byelaws to remain in force); |
| Section 14 | (Compensation may be made to officers for loss of office); |
| Part III | (Constitution of Board of Commissioners for the district and division of the district into wards); |
| Section 19 | (Qualification of Commissioners); |
| Section 20 | (First Commissioners); |
| Section 21 | (Retirement of first Commissioners); |
| Section 22 | (Providing for the order in which the Commissioners shall go out of office); |
| Section 23 | (For determining the rotation in which Commissioners are to go out of office); |

- Section 25 (Scale of voting);
- Section 27 (Annual and other meetings of Commissioners);
- Section 35 (26 Vict. c. 13 to extend to district);
- Section 37 (Local Government Act 1858 section 53 extended to gas company);
- Section 43 (Power to make rules &c. for regulating constables Penalty);
- Section 44 (Extension of 22 & 23 Vict. c. 32 to this Act);
- Section 45 (The sum of £200 already in hand to be carried to credit of superannuation fund);
- Section 46 (Periods of service for superannuation allowance when and from what time to be reckoned);
- Section 47 (Commissioners may grant gratuities to widow or family of deceased constable out of superannuation fund);
- Section 49 (Commissioners may provide police barracks);
- Section 54 (Constable or other person may be authorised to break open premises in case of fire);
- Section 65 (Public Health Act 1848 section 59 extended);
- Section 66 (As to rating tenements partly within the district or partly within a special area);
- Section 75 (To pay trustees of Vallance Estate for sewer made by them);
- Section 77 (Expenses of Act):
- The Act of 1877—
- Section 4 (Amendment of provisions of Act of 1873 as to election of Commissioners);
- Section 5 (As to retirement of additional Commissioners);
- Section 14 (As to levying rates);
- Section 15 (Power to re-borrow);
- Section 16 (Power to borrow money);
- Section 17 (Power to issue debenture stock);
- Section 18 (Period for repayment);
- Section 19 (Restriction on works affecting Post Office telegraph system);
- Section 21 (Expenses of Act):
- The Act of 1912—
- Subsection (3) of section 55 (Power to borrow);
- Section 56 (Section 234 of Public Health Act 1875 not to apply);

PART VII.
—cont.

- Section 58 (Mode of raising money);
- Section 59 (Provisions of Public Health Act 1875 as to mortgages to apply);
- Section 60 (Mode of payment off of money borrowed);
- Section 61 (Sinking fund);
- Section 62 (Protection of lender from necessity of inquiry);
- Section 63 (Appointment of receiver);
- Section 64 (Corporation not to regard trusts);
- Section 65 (Power to re-borrow);
- Section 66 (Power to invest all sinking funds in statutory securities);
- Section 67 (Power to use one form of mortgage for all purposes);
- Section 69 (Returns to Local Government Board as to sinking funds);
- Section 71 (Audit of accounts);
- Section 75 (Removal of existing tramway in parish of Aldrington);
- Section 82 (Form of delivery of notices);
- Section 84 (Costs of Act):

The Act of 1913—

- Section 36 (No building allowed until street defined);
- Section 45 (Notice of intention to repair drains);
- Section 48 (Amendment of section 19 of Public Health Acts Amendment Act 1890);
- Section 54 (Defining the establishing a new business);
- Section 56 (Regulation dustbins);
- Subsection (3) of section 59 (Power to borrow);
- Section 61 (Application of certain sections of Act of 1912);
- Section 62 (Appointment of receiver);
- Section 66 (Audit of accounts);
- Section 68 (Prosecution of offences in Hove Park and Hove Recreation Ground);
- Section 70 (In executing works for owners Corporation not liable for damages save in case of negligence);
- Section 75 (Authentication and service of notices &c.);
- Section 76 (As to breach of conditions of consent of Corporation);
- Section 77 (Consent of Corporation to be in writing);
- Section 78 (Apportionment of expenses in case of joint owners);
- Section 91 (Costs of Act).

71. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

PART VII.
—cont.

Crown
rights.

72. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation.

Costs of
Act.

The SCHEDULE referred to in the foregoing Act.

LOCAL ACTS.

PART I.

ACTS.

Sections xxxii cxii and cxiii of the Act passed in 1830 entitled "An Act for paving lighting watching cleansing and otherwise improving Brunswick Square and Brunswick Terrace and certain streets and other public places upon certain grounds late part of a farm called 'the Wick Farm' in the parish of Hove in the county of Sussex" as set forth in Schedule (A) to the Act of 1873.

Sections xxv xxvi xxvii xxxv xxxvi and xxxvii of the Brunswick Square Improvement Extension Act 1851 as set forth in Schedule (A) to the Act of 1873.

Section liv of the Hove Improvement Act 1858 as set forth in Schedule (A) to the Act of 1873.

The Hove Commissioners Act 1873.

The Hove Commissioners Act 1877.

The Hove Corporation Act 1912.

The Hove Corporation Act 1913.

PART II.

ORDERS.

Session and chapter.	Short title.	Order thereby confirmed.
43 & 44 Vict. c. xxxvi.	The Local Government Board's Provisional Orders Confirmation (Abingdon etc.) Act 1880.	The Order dated 27th April 1880 relating to the town of Hove.
46 & 47 Vict. c. cxxxvi.	The Local Government Board's Provisional Orders Confirmation (No. 5) Act 1883.	The Order dated 16th May 1883 relating to the town of Hove.
17 & 18 Geo. 5. c. xlix	The Ministry of Health Provisional Order Confirmation (Hove Extension) Act 1927.	The Hove (Extension) Order 1927.

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Controller of His Majesty's Stationery Office and King's Printer of Acts
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